

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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CHARLES TODD HERBERT,

Plaintiff,

- against -

Index No: 160860/2017

COMPLAINT

CITY OF NEW YORK, COUNTY OF NEW YORK,
POLICE OFFICER ALVAREZ (32nd Precinct),
CYRUS R. VANCE, JR., NEW YORK COUNTY
DISTRICT ATTORNEY, SAMANTHA A.
LITRENTA, ESQ., ASSISTANT DISTRICT
ATTORNEY, "JOHN DOE NO. 1" through
"JOHN DOE NO. 10.," the persons intended being the
detective(s) and other NYPD employees
in the 32nd Precinct, NYPD, who
caused plaintiff to be charged and arrested, and
the ADAs or other employees of the New York
County District Attorney's office who refused to
prevent or otherwise take action to prevent
plaintiff from being charged and arrested, and/or
who refused to dismiss the criminal charges
against plaintiff in May, June, July and August 2016,

Date of Filing:
December 7, 2017

Defendants.
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Plaintiff Charles Todd Herbert, by his attorney, Jonathan M. Landsman, as and for his

Complaint against defendants, hereby avers as follows:

Preliminary Statement

1. This is an action pursuant to 42 U.S.C. sec. 1983 for deprivation of plaintiff's federal constitutional rights under color of state law, false arrest and false imprisonment, malicious prosecution, and related torts, relating to an incident occurring on May 11, 2016, at approximately 7 a.m., when, at the New York City Police Department 32nd Precinct, 250 West

135th Street, New York, New York, plaintiff was arrested by Officer Alvarez of the NYPD, 32nd Precinct.

2. Plaintiff was arrested for and charged with criminal contempt, second degree, in violation of Penal Law sec. 215.50 03, a class A misdemeanor, and harassment in the second degree, in violation of Penal Law sec. 240.26 03, a violation. Officer Alvarez said he was acting under orders of a detective at the 32nd precinct. At no time did Officer Alvarez, a detective or anyone else at the NYPD have probable cause or reasonable cause to believe that plaintiff had committed a crime. Plaintiff, in fact, had not committed a crime.

3. Officer Alvarez intentionally and without the right to do so arrested plaintiff without a warrant. Plaintiff was handcuffed and detained against his will. He was released after some 15 hours. The New York County District Attorney's Office was notified of the lack of probable cause prior to May 11, 2016 but refused to stop the arrest.

4. Following the arrest, the New York County District Attorney's Office and defendant Samantha A. Litrenta, assistant district attorney, refused to drop the criminal case against plaintiff at the initial court appearance on May 11, 2016, and instead continued to prosecute the case well beyond May 11, 2016 without probable cause. Defendants refused to dismiss the charges throughout May, June, July and August 2016.

5. Finally, on September 8, 2016, the New York County District Attorney's office dismissed all charges as unfounded and unprovable, thereby admitting the lack of probable cause.

6. Plaintiff has suffered substantial damages, as follows: deprivation of liberty, denial of equal protection of the law, false arrest and false imprisonment, malicious prosecution, personal injuries from handcuffing and detention, mental anguish, emotional distress, pain and suffering,

legal fees defending the bogus criminal charges and prosecuting this action, punitive damages; and litigation fees, costs and disbursements.

7. Plaintiff seeks compensatory and punitive damages in amounts to be determined at trial, as well as reasonable attorneys' fees and the costs and disbursements of this action.

The Parties

8. Plaintiff is a resident of the State of New York, County of New York. He lives at 2155 Adam Clayton Powell Boulevard, Apartment 1, New York NY 10027 (the "Apartment").

9. Defendant City of New York is a municipal corporation of the State of New York,

10. Defendant County of New York is a county of the State of New York.

11. Police Officer Alvarez of the 32nd Precinct is a uniformed member of the New York City Police Department.

12. Defendant Cyrus R. Vance, Jr., is the New York County District Attorney.

13. Defendant Samantha A. Litrenta, Esq., is an assistant district attorney working in the office of Cyrus R. Vance, Jr., New York County District Attorney.

14. Defendants "John Doe No. 1" through "John Doe No. 10," are fictitious defendants, whose identities are presently unknown to the plaintiff. The persons intended are the detective(s) and other NYPD employees in the 32nd Precinct, NYPD, who caused plaintiff to be charged and arrested, and the ADAs or other employees of the New York County District Attorney's office who refused to prevent or otherwise take action to prevent plaintiff from being charged and arrested, and/or who refused to dismiss the criminal charges against plaintiff in May, June, July and August 2016.

Facts of the Case

15. Plaintiff was the longtime tenant of record of the Apartment.

16. Plaintiff and Charise Smith became romantically involved when Ms. Smith was living elsewhere.

17. Ms. Smith thereafter moved into the Apartment.

18. The romantic relationship between plaintiff and Ms. Smith thereafter ended, but Ms. Smith refused to vacate the Apartment. Nor did she pay any rent.

19. Plaintiff asked Ms. Smith to vacate the Apartment, but Ms. Smith continued to stay. Eventually, in or about October 2015, plaintiff served a Ten-Day Notice to Quit on Ms. Smith, demanding that she vacate the Apartment.

20. Ms. Smith still refused to vacate the Apartment.

21. This forced plaintiff to commence a holdover proceeding in New York City Housing Court in December 2015. There was an initial court date on January 12, 2016. The case was then adjourned by the Court to March 8, 2016.

22. Shortly before the March 8, 2016 court date, Ms. Smith filed a domestic incident report with the 28th precinct of the NYPD against plaintiff.

23. By so-ordered Stipulation of Settlement dated March 8, 2016, Housing Court awarded plaintiff a judgment of possession and the immediate issuance of a warrant of eviction against Ms. Smith.

24. Execution of the warrant was stayed on consent until May 2, 2016. Plaintiff and Ms. Smith further agreed that if Ms. Smith vacated the Apartment on or before May 2, 2016, in broom clean condition, undamaged, then, upon receipt of the keys from Ms. Smith, plaintiff

would tender to Ms. Smith \$2,500 as a relocation allowance. This required interaction between plaintiff and Ms. Smith at some point on or before May 2, 2016.

25. The Housing Court stipulation further provided that the \$2,500 payment would be in full satisfaction of any and all claims and demands with respect to the Apartment that Ms. Smith might have against plaintiff. Ms. Smith agreed to withdraw her domestic incident report against plaintiff as part of the Stipulation.

26. The Housing Court stipulation further provided that if Ms. Smith did not vacate the Apartment on or before May 2, 2016, then she would not receive the \$2,500 and the Marshall may evict her.

27. The Housing Court stipulation further provided that both plaintiff and Ms. Smith could remain in occupancy in the Apartment until May 2, 2016, and that they shall both attempt in good faith to live peaceably in the Apartment. Further, the stipulation prohibited Ms. Smith from entering plaintiff's bedroom in the Apartment.

28. Shortly after signing the Housing Court stipulation, Ms. Smith went into Family Court, seeking an order of protection and attempting to ban plaintiff from his own Apartment. This was contrary to the Housing Court stipulation, which allowed plaintiff to remain in his Apartment until Ms. Smith's eviction was effectuated.

29. Family Court issued only a very limited order of protection against plaintiff. In the temporary order of protection, dated March 22, 2016, the Court prohibited plaintiff from engaging in certain listed criminal actions against Ms. Smith. The Court did not prohibit plaintiff from communicating with plaintiff. The Court did not prohibit plaintiff from entering his own

Apartment. Indeed, the Housing Court so-ordered stipulation expressly permitted plaintiff to remain in his Apartment.

30. In Family Court on March 28, 2016, when Ms. Smith complained that plaintiff was playing music too loud, the Court responded, “I’d suggest getting ear plugs.” The Court reminded Ms. Smith that it is plaintiff’s Apartment and that he can play music as loud as he wants.

31. In or about April 2016, to avoid further false allegations from Ms. Smith, plaintiff voluntarily moved out of the apartment until after Ms. Smith either moved or was evicted in early May.

32. In late April 2016, Ms. Smith contacted plaintiff’s counsel and said she wanted to move out before May 2 and obtain the \$2,500 before then.

33. On April 28, 2016, Ms. Smith contacted plaintiff’s counsel and offered to drop the Family Court case if plaintiff paid her the \$2,500 at that time.

34. On April 29, 2016, Ms. Smith sent plaintiff a text message proposing that she exchange the keys for the \$2,500 the evening of Friday, April 29, 2016 instead of Monday, May 2, 2016.

35. Plaintiff replied with the following text: “I have a gig at 6 so I need to leave at 5. Either we do this now or wait till Monday.” (Plaintiff is a musician and he was referring to a 6 p.m. work engagement on Friday, April 29, 2016.)

36. There following additional communications between plaintiff and Ms. Smith on April 29. Plaintiff was attempting to arrange a meeting with Ms. Smith on April 29 before his show to accommodate Ms. Smith’s request that she receive the \$2,500 on April 29 not May 2.

37. The subject of the April 29 communications was Ms. Smith exchanging the keys for the \$2,500 prior to May 2.

38. The aforesaid communications were clearly permitted by the March 2016 Housing Court so-ordered stipulation.

39. The exchange of keys for money requested by Ms. Smith did not take place on April 29.

40. On Monday, May 2, 2016, Ms. Smith moved out of the Apartment, tendered the keys to the Apartment to plaintiff's counsel, and was given the \$2,500 check that plaintiff had given to plaintiff's counsel. She formally surrendered all her interest in the Apartment at that time. Plaintiff, through counsel, formally accepted the surrender. This exchange took place at the offices of plaintiff's counsel. Plaintiff himself was not present.

41. Ms. Smith took the \$2,500 but also filed a false criminal complaint against plaintiff with the New York City Police Department, apparently claiming violation of the limited Family Court Order of Protection based on the communications of April 29, 2016 initiated by Ms. Smith for the purpose of obtaining her \$2,500 before May 2.

42. Officer Alvarez of the 32nd Precinct, NYPD, showed up unannounced at plaintiff's apartment on May 4, 2016. Plaintiff buzzed them in. He had a conversation with Officer Alvarez and one other uniformed officer at the front door to the Apartment. They asked plaintiff if Charise Smith was there and plaintiff told them she moved out. Then plaintiff showed the police the limited order of protection. Plaintiff explained to them that there was a limited order of protection that did not say anything about not speaking to texting Ms. Smith, calling Ms. Smith

or having non-criminal contact with Ms. Smith. Plaintiff pointed out that the limited order of protection only said do not commit crimes against Ms. Smith.

43. The police mentioned plaintiff sending an e-mail and calling her because he had to move out because he could not live with her. Plaintiff explained to the police about her contacting him about obtaining the \$2,500 relocation allowance early. Plaintiff told the police he texted her saying he can do that, they could exchange the money for the keys. Plaintiff explained to the police the existence of the Housing Court matter. Plaintiff also explained to the police what was going on in Family Court with the temporary order of protection. Plaintiff showed them a copy of the limited order of protection.

44. The conversation with the police lasted about 5 minutes and ended when the police said Okay and just left.

45. The next day, May 5, 2016, Officer Alvarez and other police officers came back to the Apartment at 6 am obviously wanting to arrest plaintiff. Plaintiff did not let them in and referred them to his attorney.

46. Later that day, Officer Alvarez left a message on plaintiff's cellphone to the effect that they wanted him to come to the station. The police called plaintiff's cellphone number even though plaintiff had recently told them they needed to speak with his attorney.

47. About two-and-one-half hours after that, the police called again, even though plaintiff had previously told them to speak to his attorney.

48. On May 5, 2016, plaintiff's counsel offered to fax the limited Order of Protection to Officer Alvarez. Officer Alvarez would not provide a fax number and said the arrest would not be stopped. He said police were going to bring plaintiff in and further there would be no

appearance ticket (i.e., he would be arrested, brought to Central Booking, and detained until arraignment).

49. Basically, the NYPD could care less about what the limited Order of Protection actually said.

50. Officer Alvarez further stated that he thought the order of protection included a blanket prohibition against plaintiff calling Ms. Smith or communicating with Ms. Smith in any way. This was completely incorrect.

51. Plaintiff's counsel read the April 29 text message to Officer Alvarez and explained that plaintiff was in fact replying to Ms. Smith's text to plaintiff.

52. On May 6, 2016, plaintiff retained criminal defense counsel in an effort to stop the arrest.. That counsel called DA's office to discuss the case. and explain the limited nature of the order of protection in detail. The counsel explained the Housing Court stipulation.

53. DA's office refused to stop the arrest. The DA's office said plaintiff had to be arrested and go through the system in order for the DA to do anything.

54. Ms. Smith failed to appear at a May 9, 2016 Family Court proceeding on her complaint against plaintiff. The case was adjourned to May 23.

55. Plaintiff was arrested at 7 a.m. on May 11, 2016 at the 32nd precinct when he turned himself in. He was fingerprinted, had his photograph taken, and had DNA sample taken.

56. Plaintiff remained detained at the precinct on 135th Street for two to two-and-one-half hours. After that, he was transported to Central Booking.

57. Plaintiff finally saw a judge at 9 pm that day. He was released from custody without bail at about 10 pm.

58. The May 23, 2016 Family Court date was adjourned to June 15, 2016. On June 15, 2016, the Family Court case was dismissed. The criminal case was adjourned.

59. Plaintiff had to appear again in Court on June 28 2016 on the criminal court charges. The case was adjourned to September 8, 2016.

60. Plaintiff had to appear in Court again on September 8, 2016. On that date, there was a complete dismissal of all criminal charges against the plaintiff.

61. Plaintiff served a notice of claim on defendants pursuant to the General Municipal Law on December 7, 2016, by certified mail.

62. Defendants have failed to adjust or pay the claim.

AS AND FOR A FIRST CAUSE OF ACTION

False Arrest and False Imprisonment

63. Plaintiff repeats and realleges paragraphs 1-62, above, as if fully set forth herein.

64. At all relevant times, defendants intended to confine plaintiff

65. Plaintiff was conscious of the confinement at all relevant times.

66. Plaintiff did not consent to the confinement.

67. Defendants cannot prove that the confinement was otherwise privileged.

68. There was no warrant for plaintiff, making the arrest presumptively invalid under New York common law.

69. Defendants lacked probable cause to arrest plaintiff without a warrant.

70. Defendants did not have reasonable cause for believing that crime was committed and that the person arrested committed the crime.

71. Anyone reading the Family Court order of protection could see that it did not prohibit communication between plaintiff and Ms. Smith.

72. Anyone reading the Housing Court so-ordered stipulation could see that it required interaction between plaintiff and Ms. Smith on or about May 2, 2016.

73. Plaintiff suffered actual injuries as a result of defendants' actions.

74. Plaintiff is entitled to judgment against defendants for compensatory and punitive damages in amounts to be determined at trial.

AS AND FOR A SECOND CAUSE OF ACTION

Malicious Prosecution

75. Plaintiff repeats and realleges paragraphs 1-74, above, as if fully set forth herein.

76. Defendants initiated and continued a criminal judicial proceeding against plaintiff.

77. The judicial proceeding lasted from May to September 2016.

78. The criminal judicial proceeding terminated in plaintiff's favor on September 8, 2016.

79. Defendants lacked probable cause to believe that plaintiff had committed the crimes for which he was prosecuted. Defendants acted with malice in initiating and continuing the prosecution of plaintiff from May to September 2016 as the prosecution was initiated and continued with reckless disregard of plaintiff's rights. There was no reasonable ground to believe that plaintiff was guilty of a crime.

80. Anyone reading the Family Court order of protection could see that it did not prohibit communication between plaintiff and Ms. Smith.

81. Anyone reading the Housing Court so-ordered stipulation could see that it required interaction between plaintiff and Ms. Smith on or about May 2, 2016.

82. Plaintiff suffered actual injuries as a result of defendants' actions.

83. Plaintiff is entitled to judgment against defendants for compensatory and punitive damages in amounts to be determined at trial.

AS AND FOR A THIRD CAUSE OF ACTION

Deprivation of Federal Constitutional Rights Under Color of State Law

84. Plaintiff repeats and realleges paragraphs 1-83, above, as if fully set forth herein.

85. At all relevant times, defendants acted under color of state law within the meaning of 42 U.S.C. sec. 1983.

86. At all relevant times, defendants were municipal policymakers within the meaning of 42 U.S.C. sec. 1983.

87. Plaintiff had the federal constitutional rights to be free from deprivation of liberty without due process of law, unreasonable search and seizure, denial of equal protection of the law.

88. Defendants actions, as set forth above, deprived plaintiff of his federal constitutional rights set forth above.

89. At all relevant times, defendants intended to confine plaintiff

90. Plaintiff was conscious of the confinement at all relevant times.

91. Plaintiff did not consent to the confinement.

92. Defendants cannot prove that the confinement was otherwise privileged.

93. There was no warrant for plaintiff, making the arrest presumptively invalid under New York common law.

94. Defendants lacked probable cause to arrest plaintiff without a warrant.

95. Defendants did not have reasonable cause for believing that crime was committed and that the person arrested committed the crime.

96. Anyone reading the Family Court order of protection could see that it did not prohibit communication between plaintiff and Ms. Smith.

97. Anyone reading the Housing Court so-ordered stipulation could see that it required interaction between plaintiff and Ms. Smith on or about May 2, 2016.

98. Defendants initiated and continued a criminal judicial proceeding against plaintiff.

99. The judicial proceeding lasted from May to September 2016.

100. The criminal judicial proceeding terminated in plaintiff's favor on September 8, 2016.

101. Defendants lacked probable cause to believe that plaintiff had committed the crimes for which he was prosecuted. Defendants acted with malice in initiating and continuing the prosecution of plaintiff from May to September 2016 as the prosecution was initiated and continued with reckless disregard of plaintiff's rights. There was no reasonable ground to believe that plaintiff was guilty of a crime.

102. Plaintiff was treated differently from other persons accused of criminal activity because there was an order of protection against him. Defendants ignored the language of the order of protection and raced to arrest and prosecute plaintiff in total disregard of his rights, merely because there was an order of protection against him.

103. Plaintiff suffered actual injuries as a result of defendants' actions.

104. Plaintiff is entitled to an award of compensatory and punitive damages against defendants as well as an award of reasonable attorneys' fees and disbursements pursuant to 42 U.S.C. sec. 1988 in amounts to be determined at or after trial.

WHEREFORE, plaintiff demands judgment for compensatory damages; punitive damages; reasonable attorneys' fees and disbursements; statutory costs and disbursements, and such other and further relief as this Court deems just and proper, in amounts to be determined at and after trial.

Dated: New York, New York
June 19, 2018

Respectfully submitted,

Jonathan M. Landsman

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